

**Sixty-ninth Legislative Assembly of North Dakota**  
**In Regular Session Commencing Tuesday, January 7, 2025**

HOUSE BILL NO. 1205  
(Representatives Holle, Bolinske, Meier, Pyle, M. Ruby, Schauer, S. Olson)  
(Senators Boschee, Castaneda, Mathern, Weston, Larson)

AN ACT to amend and reenact section 50-25.1-15 of the North Dakota Century Code, relating to abandonment of infants in newborn safety devices.

**BE IT ENACTED BY THE LEGISLATIVE ASSEMBLY OF NORTH DAKOTA:**

**SECTION 1. AMENDMENT.** Section 50-25.1-15 of the North Dakota Century Code is amended and reenacted as follows:

**50-25.1-15. Abandoned infant - Approved location procedure - Reporting immunity.**

1. As used in this section:
  - a. "Abandoned infant" means an infant who has been abandoned at birth at a hospital or before reaching the age of one year regardless of the location of birth and who has been left with an on-duty staff member or, if an infant is less than sixty days old, left in a newborn safety device, at an approved location in an unharmed condition.
  - b. "Approved location" means a hospital or other location as designated by administrative rule adopted by the department.
  - c. "Hospital" means a facility licensed under chapter 23-16.
  - d. "Newborn safety device" means a device that is:
    - (1) Physically part of the building at an approved location;
    - (2) Staffed twenty-four hours a day seven days a week;
    - (3) Temperature-controlled and ventilated for the safety of newborns;
    - (4) Equipped with a functional alarm system which automatically triggers an alarm inside the building when an infant is placed in the device; and
    - (5) Located in a manner that the interior point of access is in an area that is conspicuous and visible to the employees of the approved location.
2.
  - a. A parent of an infant less than sixty days old, or an agent of the parent with the parent's consent, may leave the infant in a newborn safety device at an approved location.
  - b. A parent of an infant under the age of one year, or an agent of the parent with the parent's consent, may leave the infant with an on-duty staff member at an approved location. ~~Neither the parent nor the~~
  - c. A parent or agent is not subject to prosecution under sections 14-07-15 and 14-09-22 for leaving an abandoned infant under this section.
3. An infant left under this section must be accepted at an approved location shall accept an infant left under this section. The~~An approved location is not required to possess a newborn safety device.~~

4. ~~Except as provided in subsection 6, the approved location may request information regarding the parents and shall provide the parent or the agent with a medical history form and an envelope with the approved location's return address. If a hospital accepting thean infant has the infant's medical history, the hospital is not required to provide the parent or the agent with a medical history form. Neither theA parent nor theor agent is not required to provide any information.~~
- 4.5. ~~If~~Except as provided in subsection 6, if an infant is left at a hospital, the hospital shall provide the parent or the agent with a numbered identification bracelet to link the parent or the agent to the infant, unless due to birth of the infant, the infant and parent ~~currently~~already have an identification bracelet. Possession of an identification bracelet does not entitle the bracelet holder to take custody of the infant ~~on demand~~. If an individual possesses a bracelet linking the individual to an infant left at a hospital under this section and parental rights have not been terminated, possession of the bracelet creates a presumption that the individual has standing to participate in a protection services action brought under this chapter or chapter 27-20.3. Possession of the bracelet does not create a presumption of maternity, paternity, or custody.
- 5.6. If an abandoned infant is left in a newborn safety device at an approved location, the approved location may not inquire as to the identity of the parent or agent. Except as provided in subsection 10, if the identity of the parent or agent of the abandoned infant is known to the approved location, the approved location shall keep all information as to the identity of the parent or agent of the abandoned infant confidential. The parent or agent of the abandoned infant is not required to provide any information to the approved location but may voluntarily provide information, including the medical history of the parents or infant.
7. The approved location may provide the parent or the agent with any relevant information, including information about:
  - a. ~~Information about the~~The safe place for abandoned infant programs;
  - b. ~~Information about adoption~~Adoption and counseling services; and
  - c. ~~Information about whom~~Whom to contact if reunification is sought.
- 6.8. Within twenty-four hours of receiving an infant under this section, the approved location shall report to the department or authorized agent, as required by section 50-25.1-03, that an infant has been left at thean approved location. The report may not be made before the parent or the agent leaves the approved location.
- 7.9. The approved location and its employees and agents are immune from any criminal or civil liability for accepting an infant under this section.
- 8.10. Upon receiving a report of an abandoned infant under this section, the department or authorized agent shall proceed as required under this chapter if it appears that the abandoned infant was not harmed, except the department or authorized agent may not attempt to identify or contact the parent or the agent. If it appears the infant who was left was harmed, the approved location shall disclose to the department or authorized agent any known information as to the identity of the parent or agent, and the department or authorized agent shall initiate a child protection assessment of the matter as required by law.
- 9.11. If an individual claiming to be the parent or the agent contacts the department or authorized agent and requests to be reunited with the ~~infant who was left~~an abandoned infant, the department or authorized agent may identify or contact the individual as required under this chapter and all other applicable laws. If an individual contacts the department or authorized agent seeking information only, the department or authorized agent may attempt to obtain information regarding the identity and medical history of the parents and may provide information regarding the procedures in a case involving an infant who was left at an approved location. The individual is under no obligation to respond to the request for information, and

the department or authorized agent may not attempt to compel response to investigate the identity or background of the individual.

- ~~40.~~12. The department shall develop and implement a public awareness campaign to provide information, public service announcements, and educational materials regarding this section to the public, including medical providers, law enforcement, and social service agencies.

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Speaker of the House

\_\_\_\_\_  
President of the Senate

\_\_\_\_\_  
Chief Clerk of the House

\_\_\_\_\_  
Secretary of the Senate

This certifies that the within bill originated in the House of Representatives of the Sixty-ninth Legislative Assembly of North Dakota and is known on the records of that body as House Bill No. 1205.

House Vote:      Yeas 91              Nays 0              Absent 3

Senate Vote:      Yeas 44              Nays 2              Absent 1

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Chief Clerk of the House

Received by the Governor at \_\_\_\_\_ M. on \_\_\_\_\_, 2025.

Approved at \_\_\_\_\_ M. on \_\_\_\_\_, 2025.

\_\_\_\_\_  
Governor

Filed in this office this \_\_\_\_\_ day of \_\_\_\_\_, 2025,

at \_\_\_\_\_ o'clock \_\_\_\_\_ M.

\_\_\_\_\_  
Secretary of State